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বাংলাদেশ সুপ্রীমকোর্ট

হাইকোর্ট বিভাগ

আপীল সম্পর্কিত

ফৌজদারী

জেলা: Netrokona

(Under Section 498 of the Code of Criminal Procedure)

ফৌজদারী কার্যবিধি আইনের ৪৩৫ ধারার অধীনে রিভিশন

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Md. Habib Ullah আবেদনকারী

মাধ্যম

Ms. Suria Nasrin, Advocate

বনাম

The State

Mr. Sujit Chatterjee, D.A.G.with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

প্রতিপক্ষ

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শাস্তি ও দন্ডাদেশ

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

আপীল আদালত

তারিখ

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কাগজপত্র বা আদেশের ক্রমিক নং	তারিখ	নোট এবং আদেশ	স্বাক্ষর
	<u>10.03.2024</u>	Let a Rule be issued calling upon the opposite party to show cause as to why the petitioner should not be enlarged on bail in Atpara Police Station Case No.19 dated 27.07.2023 corresponding to G.R. Case No.103 of 2023 under Sections 406/420/467/468/471/506 of the Penal Code, now pending in the Court of learned Chief Judicial Magistrate, Netrokona and/or pass such other or further order or orders as to this Court may seem fit and	

		proper. The Rule is made returnable within 6(six) weeks from date. In this case under Section 406/420/467/468/471/506 of the Penal Code the petitioner has made a confession to have received Taka 8,50,000/- from the victims of this case. Ms. Suria Nasrin, learned Advocate for the petitioner Md. Habib Ullah submits that the petitioner is repentant and he is willing to return back the money he received from the victims within 6(six) months if he is granted ad-interim bail for above period. Mr. Sujit Chatterjee, learned Deputy Attorney General for the State submits that for the victims getting back of their money is very important and the petitioner may be granted bail for 6(six) months with condition that before expiry of above period of bail he would pay total 8,50,000/- to the victims and submit a compliance. On consideration of above submissions of learned Advocates for respective parties and materials on record we are inclined to grant ad-interim bail to petitioner Md. Habib Ullah with condition. Pending disposal of the Rule, let accused petitioner Md. Habib Ullah, son of Abdul Haque be enlarged on ad-interim bail for a period of 6(six) months with condition that he would pay Tk.8,50,000/- to the victims before expiry of above period and submit a compliance on 20.10.2024. He also execute a bail bond to the satisfaction of the Chief Judicial Magistrate, Netrokona. If the petitioner fails to submit above compliance as has been assured by his appointed Advocate above bail shall stand cancelled. To 20.10.2024 for submission of Affidavit of Compliance.
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দ্রষ্টব্যঃ কালো কালিতে অফিস নোটের একটি ক্রমিক নম্বর এবং লাল কালিতে কোর্টের আদেশের আরেকটি ক্রমিক নম্বর হইবে।

নং সপম (বাঃ বাঃ কোঃ)/ভেটিং/ফ-১১০/৮৫-৩৫৮৩